

1 **HOUSE OF REPRESENTATIVES - FLOOR VERSION**

2 STATE OF OKLAHOMA

3 2nd Session of the 60th Legislature (2026)

4 COMMITTEE SUBSTITUTE
5 FOR
6 HOUSE BILL NO. 2992

By: Boles, Chapman, Cornwell
Hildebrant, **Staires**,
Dobrinski, **Clinton**,
Dollens, and **Wolfley** of the
House

8 and

9 Green and **Seifried** of the
10 Senate

11
12 COMMITTEE SUBSTITUTE

13 An Act relating to the Corporation Commission;
14 creating the Data Center Customer Protection Act of
15 2026; defining terms; requiring governing bodies
16 provide certain protections regarding rates;
17 requiring electric suppliers establish and maintain
18 certain separate terms, conditions and tariffs;
19 detailing terms and conditions; requiring certain
20 term of service be ten years; making certain
21 exception; stating applicability; authorizing the
22 promulgation of rules; granting certain exclusive
23 jurisdiction; requiring electric suppliers comply to
24 act; providing for codification; providing an
 effective date; and declaring an emergency.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

1 SECTION 1. NEW LAW A new section of law to be codified
2 in the Oklahoma Statutes as Section 900 of Title 17, unless there is
3 created a duplication in numbering, reads as follows:

4 This act shall be known and may be cited as the "Data Center
5 Customer Protection Act of 2026".

6 SECTION 2. NEW LAW A new section of law to be codified
7 in the Oklahoma Statutes as Section 901 of Title 17, unless there is
8 created a duplication in numbering, reads as follows:

9 As used in the Data Center Customer Ratepayer Protection Act of
10 2026:

11 1. "Applicable governing body" means, with respect to any
12 retail electric supplier, the governmental, regulatory, or self-
13 governing authority having lawful jurisdiction over the
14 construction, ownership, interconnection, planning, safety, or
15 operation of such electric supplier, including but not limited to,
16 the Corporation Commission, a municipal governing body, a rural
17 electric cooperative's board of trustees, or other nonjurisdictional
18 supplier;

19 2. "Cost causation" means customers responsible for the
20 electric supplier incurring the cost should be allocated their
21 equitable share of those costs;

22 3. "Electric supplier" means any entity providing electric
23 service within the state, including investor-owned utilities,
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1 electric cooperatives, municipal electric utilities, and public
2 power utilities;

3 4. "Large load customer" means new data centers, new
4 cryptocurrency mining operations and new facilities whose primary
5 function is artificial-intelligence computing facilities that
6 contract with an electric supplier to add seventy-five (75)
7 megawatts or greater electric load per facility or in aggregate
8 behind a single point of interconnection to an electric supplier's
9 load after July 1, 2026. It does not include residential,
10 commercial, agricultural, or industrial ratepayers, or those
11 entities that build generation for behind-the-meter projects; and

12 5. "Residential customer" means a customer receiving retail
13 electric service for household purposes as established by the
14 applicable electric supplier.

15 SECTION 3. NEW LAW A new section of law to be codified
16 in the Oklahoma Statutes as Section 902 of Title 17, unless there is
17 created a duplication in numbering, reads as follows:

18 Any applicable governing body responsible for reviewing electric
19 supplier rates shall ensure that residential, commercial and
20 industrial customers are protected from paying unjust rates
21 resulting directly from electric service to large load customers.
22 The applicable governing body shall ensure that all rates are fair,
23 just and reasonable, and costs and revenues are assigned and
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1 allocated among customers in accordance with cost causation
2 principles.

3 SECTION 4. NEW LAW A new section of law to be codified
4 in the Oklahoma Statutes as Section 903 of Title 17, unless there is
5 created a duplication in numbering, reads as follows:

6 All electric suppliers shall establish and maintain separate
7 terms and conditions of electric service applicable to any large
8 load customer and shall create and maintain separate tariffs
9 applicable to such large load customers. These terms, conditions,
10 and tariffs shall include credit requirements and any other measures
11 necessary to ensure that such customers reimburse the utility for
12 all costs fairly allocated to them under Section 3 of this act,
13 including costs incurred to directly serve the customer that may
14 remain unrecovered if the customer departs the system or materially
15 reduces load. The term of service for a large load customer shall
16 be at least ten (10) years. For any public power utility using tax-
17 exempt municipal financing, the term of the agreement shall be the
18 lesser of ten (10) years or the applicable Internal Revenue Service
19 Guideline.

20 SECTION 5. NEW LAW A new section of law to be codified
21 in the Oklahoma Statutes as Section 904 of Title 17, unless there is
22 created a duplication in numbering, reads as follows:

23 This act applies to all retail electric suppliers serving load
24 in this state, including investor-owned utilities regulated by the

1 Corporation Commission, electric cooperatives, municipal electric
2 utilities, and public power utilities.

3 SECTION 6. NEW LAW A new section of law to be codified
4 in the Oklahoma Statutes as Section 905 of Title 17, unless there is
5 created a duplication in numbering, reads as follows:

6 The Oklahoma Corporation Commission may promulgate rules within
7 its authority and jurisdiction to effectuate the provisions of this
8 act. For electric suppliers subject to the jurisdiction of the
9 Oklahoma Corporation Commission for regulation of their electric
10 rates, the Oklahoma Corporation Commission shall have exclusive
11 jurisdiction to enforce the provisions of this act within its
12 authority. Retail electric suppliers shall comply with this act as
13 a condition of providing service to large load customers.

14 SECTION 7. This act shall become effective July 1, 2026.

15 SECTION 8. It being immediately necessary for the preservation
16 of the public peace, health or safety, an emergency is hereby
17 declared to exist, by reason whereof this act shall take effect and
18 be in full force from and after its passage and approval.

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20 COMMITTEE REPORT BY: COMMITTEE ON ENERGY AND NATURAL RESOURCES
21 OVERSIGHT, dated 03/04/2026 - DO PASS, As Amended and Coauthored.

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